

ON-SITE SEWAGE DISPOSAL SYSTEM (OSDS)
INSPECTION AND TEST ADDENDUM

ADDENDUM dated _____ to Contract of Sale
between Buyer _____
and Seller _____
for Property known as _____

1. **NOTICE:** On-site sewage disposal system inspections and inspectors are subject to State of Maryland Department of the Environment (MDE) guidelines. On or after July 1, 2022, an individual may not engage in the business of inspecting an on-site sewage disposal system unless the individual holds a valid on-site wastewater property transfer inspection license issued by the MDE. Persons hiring on-site sewage disposal system inspectors should obtain proof that the inspector has satisfied the MDE requirement. Prior to entering into a contract for inspection services, a full disclosure and explanation of types of available sewage disposal inspection tests, possible effects on the property, and expected costs should be obtained from the inspector. The inspector should be able to provide evidence of insurance or bond to cover liability in the event the property is damaged as a result of such inspection(s) and test(s).

2. AGREEMENT OF THE PARTIES:

This Contract is contingent upon an inspection of the private on-site sewage disposal system by an individual who has completed a MDE approved course as required by law.

Said inspection shall be performed and the results obtained within _____ (____) days from the Date of Contract Acceptance (the "Inspection Period"). Said inspection shall be performed at Buyer's expense and at Buyer's sole risk of damage to the property. Seller shall make the property accessible and will cooperate with Buyer in arranging for the inspection within the Inspection Period.

Within five (5) days following Buyer's receipt of inspection results, Buyer shall provide Seller a copy of any written inspection results and notify Seller in writing if Buyer is not satisfied with the inspection results. If Buyer is not satisfied with the inspection results, Seller, upon written notice from Buyer, shall correct any deficiencies prior to settlement, at Seller's expense, provided the cost of correction does not exceed _____ Dollars (\$____). If the estimated cost of correction exceeds the above amount, Seller, at Seller's option, upon written notice to Buyer, may declare the Contract null and void and of no further force and effect, unless Buyer agrees, in writing, to pay for the cost of correction exceeding the above amount, then the Contract shall remain in full force and effect.

If such inspection results reveal deficiencies for which the cost of correction exceeds the above amount, Seller's decision regarding correction and/or cancellation, shall be communicated in writing to Buyer, with copy(ies) of contractor estimate(s) of correction, within five (5) days from receipt of the inspection results, after which Buyer shall respond to Seller, in writing, with Buyer's decision within three (3) days from receipt of Seller's notification of Seller's decision. If Seller does not notify Buyer, in writing, of Seller's decision within five (5) days from receipt of the inspection results, Buyer may, at Buyer's option, pay for the cost of correction exceeding the amount above. If Buyer does not agree to pay for the cost of correction exceeding the above amount, Buyer upon written notice to Seller, may declare the Contract null and void and of no further force and effect and, in such event, the Deposit(s) shall be disbursed in accordance with the Deposit(s) Paragraph of the Contract.

If the Contract is terminated by either party, in accordance with this Addendum, the Deposit(s) shall be disbursed in accordance with the Deposit(s) paragraph of the Contract.

All other terms and conditions of the Contract of Sale remain in full force and effect.

Buyer Signature Date

Buyer Signature Date



Seller Signature Date

Seller Signature Date

